

129 Virginia Colony, *Laws Divine, Moral and Martial* (1612)

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Region: #United States

Group: #Church of England | #Indigenous American

The English had a long history of venturing into the Atlantic that predated the voyages of Christopher Columbus. However, for a long time, such endeavours mostly involved trading and fishing, as well as piracy in Iberian-claimed waters. During the reign of Elizabeth I, Richard Hakluyt argued that the crown should take an active role in establishing colonies. The crown placed its imprimatur on patents to settle colonies, but these were initially established by private corporations. In 1606, James VI and I granted a charter for the colony of Virginia, which stretched across much of the eastern seaboard of what is now the United States. The living conditions in this colony were often dire as a result of economic instability, the spread of new diseases, and external threats. The colony at Jamestown barely survived, and its leaders desperately tried to enforce religious conformity to ward off the wrath of God. One of their measures was a strict enforcement of moral codes that aimed at raising the standard of behaviour.

The *Lawes Divine, Morall and Martiall* (known as ‘Dale’s Code’) are excerpted below. This code included additions to previous laws made by Sir Thomas Dale, one of the leaders of the colony. The codes are notable for many reasons. First, they are often compared with the later laws in the ‘Puritan’ colonies of New England. However, Virginia legislated a more thorough union of church and state, as well as far more draconian punishments for religious crimes than were ever passed or practised in Puritan New England. Second, the laws aimed to protect Indigenous Algonquians from being assaulted or unfairly treated economically. They also made it a capital offence to rape any woman – English or Algonquian. Further, the oft-repeated threats of whippings and punishments for religious infractions reveal how difficult it was to bring the people into religious conformity within colonial Virginia.¹⁸³

FOR *The Colony in Virginea BRITANNIA. Lawes Divine, Morall and Martiall, &c.* (London: Walter Burre, 1612), 1–19. Text modernised by the editors.

- 1 Since we owe our highest and supreme duty, our greatest, and all our allegiance to him from whom all power and authority is derived and flows as from the first and only fountain, and being special soldiers pressed in this sacred cause, we must only expect our success from him, who alone is the blesser of all good attempts, the King of kings, the commander of commanders, and Lord of Hosts. I do strictly command and charge all Captains and Officers, of whatever quality or nature...to take care that the Almighty God is duly and daily served and that they call upon their people to hear Sermons, as that also they diligently frequent Morning and Evening prayer themselves and by their own example of life and duty herein, encouraging others thereunto, and that such who shall often and wilfully absent themselves, be duly punished according to the martial law in that case provided.
- 2 That no man speak impiously or maliciously against the holy and blessed Trinity, or any of the three persons...or against the known Articles of the Christian faith, upon pain of death.
- 3 That no man blaspheme God's holy name upon pain of death....
- 4 No man shall use any traitorous words against His Majesty's Person or royal authority upon pain of death.
- 5 No man shall speak any word, or do any act, which may tend to the derision or despising of God's holy word upon pain of death: Nor shall any man unworthily act towards any Preacher or Minister of the same, but generally hold them in all reverent regard...otherwise the offender shall be openly whipped three times and ask public forgiveness in the assembly of the congregation over the course of three Sabbath days.
- 6 Twice a working day, every man and woman, upon the first tolling of the Bell, shall go to the Church to hear divine Service upon pain of losing his or her day's allowance for the first omission, for the second to be whipped, and for the third to be condemned to the Gallies for six Months. Likewise, no man or woman shall dare to violate or break the Sabbath by any gaming – public or private, abroad or at home – but duly sanctify and observe the Sabbath.... On that day, every man and woman shall go in the morning to the divine service... and in the afternoon to divine service and Catechising, upon pain for the first fault to lose their provision and allowance for the whole week following, for the second to lose the said allowance and also to be whipped, and for the third to suffer death.

- 7 *[On the duties of ministers to preach and diligently and attentively care for their people.]*
- 9 No man shall commit the horrible and detestable sins of Sodomy upon pain of death; and he or she that can be lawfully convicted of Adultery shall be punished with death. No man shall ravish or force any woman, maid or Indian, or other, upon pain of death, and let it be known that he or she that shall commit fornication (upon evident proof), for their first fault they shall be whipped, for their second they shall be whipped, and for their third they shall be whipped three times a week for one month and made to ask public forgiveness in the Assembly of the Congregation.
- 10 *[Law against stealing from the church or violating in some way things devoted to worship.]*
- 11 He that shall falsely take an oath or bear false witness in any cause, or against any man whatsoever, shall be punished with death.
- 12–13 *[Laws against slandering magistrates and other persons in authority, their judgements or their published declarations, grounding these stipulations in sacred writ.]*
- 14 No man shall give any disgraceful words or commit any act to the disgrace of any person in this Colony, or any part thereof, upon pain of being tied head and feet together, upon the guard every night for the space of one month, and he shall be publicly disgraced himself and be made incapable ever after to possess any place or execute any office in this employment.
- 15 No man of any condition shall barter, truck, or trade with the Indians, except he is thereunto appointed by lawful authority, upon pain of death.
- 16 No man shall rifle or despoil, by force or violence, take away anything from any Indian coming to trade, or otherwise, upon pain of death.
- 17–28 *[More economic sanctions related to merchants, inheritors, farmers, overseers and soldiers, with very grave penalties.]*
- 29 No man or woman (upon pain of death) shall run away from the Colony to Powhatan or any savage Weroance whatsoever [i.e., Indigenious Algonquians near the colony].
- 30–32 *[Further laws concerning obedience to authority, theft and exploration.]*
- 33 *[The minister is to warmly and lovingly encourage the people to visit him, recount their faith, and receive personal religious instruction, and the people had a duty to comply.]* If they shall refuse to go unto him...the Governor shall cause the offender for his first time of refusal to be whipped, for the second time to be whipped twice, and to acknowledge his fault upon the Sabbath day in the assembly of the congregation, and for the third time to be whipped every day until he has made the same acknowledgement and asked forgiveness for the

same, and this individual shall then go unto the Minister to be further instructed as aforesaid: and upon the Sabbath when the Minister shall catechise, and of him ask any question concerning his faith and knowledge, and this individual shall not refuse to answer upon peril of the aforementioned punishment.

[Additional laws concerning deceit, trade and the repayment of debts.]

Every Sabbath day before Catechising, every Minister or Preacher shall read all these laws and ordinances publicly in the assembly of the congregation upon pain of being deprived of his entertainment allowance for that week.